Form 1 **NATIONAL RAILROAD ADJUSTMENT BOARD**
FIRST DIVISION

Award No. 31041
Docket No. 01-50944
22-1-NRAB-00001-210243

The First Division consisted of the regular members and in addition Referee Wendell Bell when award was rendered.

(SMART – Transportation Division
PARTIES TO DISPUTE: (
(Terminal Railroad Association of St. Louis

STATEMENT OF CLAIM:

> **"claiming eight hours pay for switching in a foreign yard on 10 23 2015 the 300 conductor only job went to the a and s yard in east Saint Louis with 76 cars we shoved track 003 we had 4 cars left and tied on to track 004 with a ttgx 989137 tied on to a atw 273419 and cut the air in and shoved the track in the clear, tracks 001 and 002 were clear tracks, violation of agreement. time claim for e j Jacobs and s t lawson."**

FINDINGS:

The First Division of the Adjustment Board, upon the whole record and all the evidence, finds that:

The carrier or carriers and the employee or employees involved in this dispute are respectively carrier and employee within the meaning of the Railway Labor Act, as approved June 21, 1934.

This Division of the Adjustment Board has jurisdiction over the dispute involved herein.

Parties to said dispute were given due notice of hearing thereon.

In this pilot claim, a Conductor-only crew was assigned to make a 76-car interchange delivery from the TRRA's Madison Yard over to the Alton & Southern. On arrival at the A&S yard, tracks 1, 2, and 3 were clear; there were cars on track 4. The claimants were instructed to shove their train into track 3, and then couple and

shove any excess into track 4. It turned out that track 3 could only hold 72 of their cars, and so four cars were left to be placed on track 4. They made the coupling, cut the air in by coupling the air hoses, and shoved track 4 into the clear. Tracks 1 or 2 would have held the entire train.

It should be stressed that this case is being decided under the unique terms and history of the SMART – TRRA agreements, and so this case has no bearing on the disposition of any cases under the National Agreements with SMART and BLET.

This is the *seventh* TRRA Award addressing drawbar couplings by TRRA crews while making interchange deliveries. So far, the score is the Organization 4, and the Carrier 2. The two most recent Awards, PLB 7268, Award 1 (Klein, 2009) and PLB 7642, Award 1 (Scheinman, 2017), went the Organization's way. Two of the four Organization-favorable Awards specifically referenced both the May 27, 1949 Point Seniority MOA <u>and</u> the April 10, 1975 Seniority Consolidation MOA, finding, in each case, either explicitly or implicitly, that the latter did not vitiate the former. Nevertheless, the Carrier presses this case, pointing, for the very first (and seemingly only) time in more than 44 years, to a provision in the 1975 MOA which, it maintains, has the effect of completely cancelling the 1949 MOA.

Like many railroads before the 1934 amendments to the Railway Labor Act, the TRRA did not have careful, contractually delineated work rights agreements with the operating craft Brotherhoods. Instead, there was a hodgepodge of traditions, customs, practices, deals, understandings—and quarrels. This confused the early Referees, most of whom were law-trained. The result were a series of early Awards grounded on a principle that seniority rights were property rights. This became so well-established that, by 1940, when the TRRA's disputes were heard by the First Division, Referee assistance wasn't even needed. Faced with a situation where a terminal switching railroad that operated over less than 100 miles of track but nonetheless had no fewer than six separate seniority districts, the Carrier and Organization Members of the First Division *agreed* on a series of Awards, each holding:

> **"…except in bona fide case of emergency, employees from one seniority district may not be required to perform general switching in another seniority district to the detriment of employees holding point seniority therein without trespass upon the rights of the latter, unless by negotiation and agreement,…"**

The foregoing finding is without prejudice to the right of the carrier to require switch crews to perform transfer service as between two or more of the seniority districts described in keeping with prior understandings existing between the parties hereto.

Since that left matters as clear as mud, it is not surprising that the parties on TRRA reached their own arrangements. These were embodied in the Point Seniority MOA, one of four still extant that were all reached on May 27, 1949. This MOA was stated to be the "Agreed application of the district seniority provisions of the (existing contract) and Awards Nos. 4480, 4481 and 4482 of the First Division." It then went on to specify, in exquisite detail, what transfer crews could, and could not, do in "foreign seniority districts," thereby eliminating many of the restrictions on "general yard switching" that the Awards had created. These transfer crews could, for instance, make straight pick ups and set outs of cars at established points of interchange, but there were also denominated restrictions. They could, for another instance, pick up or dispose "of cars on more than one track or tracks when the track or tracks do not have the car capacity to hold the entire train" and engage in "The shoving of tracks sufficiently to yard cars in a train." But for all seven of these Awards, the most significant language is:

> **"1. Transfer crews may handle interchange cuts between of through seniority districts and dispose of their trans in foreign seniority districts provided no switching is done.**

The following work will be considered switching and cannot be done by transfer crews in foreign seniority districts:

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(c) Making drawbar couplings.

TRRA was a party to the 1972 UTU National Agreement, and so its Interchange Article. The next significant event came on April 10, 1975 when TRRA became "desirous of altering its mode of operation." In exchange for lifetime protection of the then-existing workforce, just about everything was changed. For example, TRRA could reach trackage rights agreements, and UTU could not oppose. For example, connecting road crews could deliver interchange trains anywhere on the TRRA, and could pick up interchange trains, made up by TRRA crews, from anywhere on the TRRA, including Madison Yard. But for four of these seven Awards, the most significant language is:

Article I – Seniority, Work Rules

"(a)Work rules governing the movement of trains handled by TRRA crews between points on TRRA property or between points on TRRA property and other railroads or between two railroads are amended as hereinafter provided:

(1)The entire property will constitute a single seniority district for the purpose of seniority and crew assignments. All crews will be bulletined in one of four categories, i.e., lead, trim, industry and pool, giving the starting time and starting point. "

*** * ***

(5) Pool crews will be assigned on a seniority and availability basis to perform transfer service and industrial work incidental to the performance of transfer service. They may also be used to perform necessary switching incident to the making ready and/or disposing of their train and may be used to supplement other crews to the extent set forth herein.

For the next *fifteen* years, there was a quiet period. It is presumed that, during this time, drawbar couplings by TRRA crews while making interchange deliveries occurred, and occurred again and again: it is always too useful and tempting for the connecting carriers to have the TRRA crew do things in the most helpful way for the receiving carrier in that carrier's yard. It is also presumed that claims of this type were routinely paid during this period; otherwise, there would have been appeals and board cases, and there were not.

The issue of drawbar couplings by TRRA crews while making interchange deliveries did not turn contentious until 1990, and then it has then been, sporadically, afterward. The first Award was PLB 5157, Award 18 (Fischbach, 1994), which sustained a 1990 claim after explicit consideration of Article 1(a)(5) of the 1975 MOA. The second Award was PLB 5455, Award 19 (Mikrut, 1995), which sustained a 1994 claim without mention of the 1975 MOA, but after explicit consideration of the Fischbach Award. The third and fourth also came from PLB 5455, but this time with Arbitrator Gerald Wallin. In Awards 25 and 26, he denied two 1995 claims based on the 1972 National Agreement's Interchange Article, while narrowly distinguishing the Fischbach Award, and without any mention of the 1975 MOA in either Award. The fifth Award was PLB 7268, Award 1 (Klein, 2009) which sustained a 2007 claim after explicit consideration of Article 1(a)(5) of the 1975 MOA. The sixth Award was PLB 7642,

Award 1 (Scheinman, 2017) which sustained a 2010 claim after explicit consideration of Article 1(a)(5) of the 1975 MOA.

Now comes the Carrier, yet again contending that the 1975 Agreement rendered the May 27, 1949 Point Seniority MOA null and void. Speaking of all these earlier Awards, the Carrier says:

> **"In addition, the Carrier argued that the May 27, 1949, MOA was implicitly rescinded when the parties eliminated point seniority in 1975. With the elimination of point seniority and seniority districts, there were no longer "foreign seniority districts" on which certain work (including drawbar couplings) could not be performed."**

Thus, the Carrier's position was that drawbar couplings on foreign railroad were permissible as long as they were done in accordance with the 1972 National Agreement…

> **"Here, "the Carrier's position before this Board is that the May 27, 1949, MOA upon which the Organization's claims are based was expressly cancelled in April 1975." The Carrier's forthrightness concerning the exceedingly belated citation of this language is commendable:**
>
> **To be very clear, the Carrier concedes that it could have raised the impact of Implementing Agreement No. 2 before Arbitrators Klein and Scheinman but failed to do so. There is a simple explanation for what happened: time passed, and personnel changed. The Carrier's new managers simply overlooked Implementing Agreement No. 2. Only after Arbitrators Klein and Scheinman issued their rulings did the undersigned see Implementing Agreement No. 2 while researching another issue."**

While the Carrier expresses regrets for its oversight, the Organization cannot honestly contend that this Board should ignore what the parties had agreed to in 1975.

Implementing Agreement No. 2 reads, in full, as follows:

> **"Coincident with the execution of Memorandum of Agreement signed this date, it was also agreed that the prior rights seniority of**

> switchmen and switch tenders employed prior to May 1, 1957 will be terminated with the implementation, by TRRA, of any of the provisions of the Memorandum of Agreement, at which time the Memorandum of Agreement (Point Seniority Agreement), signed May 27, 1949, is canceled in its entirety together with all other agreements, rules, or practices, however established, which have the effect of preserving district seniority and/or district seniority restrictions as now constituted."

Piecemealing of defenses was not deliberate here, at least by the TRRA's current Labor Relations staff. But piecemealing is precisely what has happened. And piecemealing of defenses is, generally, not approved, and sometimes results in barring of the belated, deferred argument. Here, there is no demonstrated reason why Implementing Agreement No. 2 was not a prominent Exhibit before Chairman Fischbach. Or Chairman Mikrut. Or Chairman Wallin. Or Chairman Klein. Or Chairman Scheinman, as all the other arguments came and went.

But put that aside. The effect of the present citation of Implementing Agreement No. 2 is to attempt to expressly demonstrate to this Division exactly what the Carrier attempted to implicitly demonstrate to Chairman Scheinman:

> "Thus, Carrier argues the promise of not crossing a foreign seniority was the only purpose of the 1949 MOA, which was rendered null and void by the April 10, 1975, Agreement, wherein, one (1) seniority district was created."

This same issue, drawbar couplings by TRRA crews while making interchange deliveries in the wake of both the 1949 and 1975 MOAs, was presented to Chairman Scheinman, and he did resolve it. Public Law Board 7642 went on to hold:

> "Here, we do not conclude Carrier has met its burden of establishing the Klein Award is palpably erroneous."

And here, we could conclude that the sudden discovery and citation of Implementing Agreement No. 2 does not mean that the Carrier has now met its burden of establishing that the Scheinman Award was palpably erroneous. While the Carrier may not have put forward what it now considers to be its best and

strongest argument before the earlier PLBs, this issue has, nevertheless, been resolved. That would put this Docket on the same footing, and warrant a similar disposition, as so many of the other cases on this List.

But put that aside. Let us consider the terms of this recently rediscovered Implementing Agreement. The Carrier now considers it to be the ultimate trump card. It is described as "could hardly be more clear" "unambiguous" "plain language" and "clear and unambiguous language." But is it? That massively run-on sentence, which is all of Implementing Agreement No. 2, is not without its ambiguities. Most significantly, does the concluding clause—"which have the effect of preserving district seniority and/or district seniority restrictions as now constituted"—modify *only* "other agreements, rules, or practices?" Or does that clause modify "(Point Seniority Agreement)…together with all other agreements rules or practices?" Why is there no comma after the word "entirety," thereby separating the two sources? What is the significance of this seeming linkage? How should this ambiguity be resolved?

To do that, we must look to how the parties have conducted their affairs over the period between April 10, 1975 and December 20, 2019, the date when the Carrier's highest designated officer, seemingly for the very first time, cited this Implementing Agreement. To meet this possibility, the Carrier points to the black letter proposition that past practice cannot alter a clear rule, and provides ample Award authority stating and restating that proposition. That proposition is unarguable, and this Award will not diverge from it. But, on this record, other considerations apply. First, as pointed out just above, the Implementing Agreement *isn't* perfectly clear: it doesn't *just* say that the "Point Seniority Agreement is canceled in its entirety" period, next thought. Instead, the sentence keeps running on, and thereby creating doubts, and ambiguity. Second, these aren't mere 'past practices.' On the railroad, what are 'past practices' are easily recognized—we've all heard them too many times: "At this shop, the sheet metal workers have always ______" or "At this point, this is how *we* allocate overtime" or "Here at Podunk, we've gotten this arbitrary since forever." Those local actions, those distinct and unauthorized peculiarities, are not what is being considered here. Third, what will be considered here are the doings, the actions—and the inactions—of the people directly responsible for making and maintaining agreements: the Carrier's highest designated officer, the Union's elected General Chairman and assigned Vice President. Those are the people who, by their course of conduct, can, and do, accrete and modify their agreements: "the General Chairman won't appeal that" "the Vice President won't list that" "Labor Relations has ruled" "the agreed-upon questions and

answers" "a new interpretation" "here's the email telling us how to apply it." ***That*** **course of conduct, by those at** ***that*** **level, with** ***that*** **authority,** ***does*** **carry interpretative weight.**

Here, that course of conduct, over many decades, is illuminating. If Implementing Agreement No. 2 was the ultimate trump card, so controlling, why did the Carrier keep it hidden for nigh on to a half a century? Why wasn't it used to bring these recurring drawbar coupling claims to a quick, total and effective end, by no later than 1976? Why did they go on, still being paid? Why wasn't that Implementing Agreement cited, in Submission, after Submission, after Submission, particularly when the initial holdings were adverse? In its Submission to this Division, the Carrier included both of its earlier Submissions, with all the exhibits, that it put before PLB 7268 and 7642. They do this, they say, to demonstrate that they did not cite or rely on Implementing Agreement No. 2 in those earlier cases. That proposition is clearly correct, but it raises its converse: since not, why not? Why did the people who handled these cases first, back since the early 90s, not trumpet what they had, in hand and duly signed by all involved? Or is it possible that, at the time of its negotiation, Implementing Agreement No. 2 was not regarded as so crucial, was not thought to do more than reiterate, maybe underline what all the rest of the agreement had already said and did? Why was it forgotten, lost in the historical files, maybe moldering in a packing box in some basement? That we can no longer ascertain; but the inaction of generations of highest designated officers, the allowing of it to drift off in the sands of time, is a highly significant course of conduct, by those with authority both within the management of the Association and under the Railway Labor Act. The parties most closely involved, those nearest to the time of Implementing Agreement No. 2, its framers and, perhaps, those down at the end of the table, never appear to have taken it to mean what it is now said to mean. With a 44-year delay before it was put forward as having this meaning, compare, in this regard, the acerbic observation of Arbitrator Conway in Public Law Board 6625, Award 15.

And then there are the on-record claim settlements made at the highest designated officer level, as specifically mentioned in Arbitrator Klein's Award, and as shown by Organization's Exhibit 11 here. Non-referable and without prejudice settlements, or claims held in abeyance, are one thing, but referable settlements are something else entirely: they show how those with authority understand, and are willing to, and do apply their own agreements. And that has meaning, and consequence.

And then there is the Section 6 Notice, and its timing. On February 21, 2017, the Carrier's advocate here sent a letter to the Organization's advocate here to "update" the Carrier's then-pending Section 6 Notice. A new item was added, and that new item was explained thusly:

> **"(21) Eliminate any existing rules or practices which prohibit crews from making drawbar couplings when disposing of trains in foreign yards and/or foreign seniority districts.**
>
> **The aforementioned proposal is made without waiver of the Carrier's position that the existing agreements already unambiguously permit what the Carrier is proposing. The proposal is made because arbitrators have ignored the unambiguous contract language in prior Awards."**

That explanatory paragraph relates to the fact that the Scheinman Award from PLB 7642 was dated January 12, 2017, and includes a dissent in which that same Carrier advocate maintained that Arbitrator Scheinman's Award "cannot survive judicial scrutiny under the Railway Labor Act." Some further observations need be made: first, the Award of PLB 7642 was not subject to legal action, and it has not been set aside as "wholly baseless and completely without reason." Second, the new item was added to the current, on-property negotiation just 39 days after the (adverse) Award was issued. Third, that Section 6 Notice has since been settled, by an Agreement of the parties dated May 28, 2020. That Agreement did not adopt the Carrier's proposal quoted above, and, so far as the record shows, it is silent on the matter. In its 2019 Interpretation No. 1 to First Division Award 29256, Referee Michael S. Jordan observed:

> **"Whether by design or otherwise, the Carrier has confirmed the general course of practice not to make offsets. This Board must not only recognize a course of conduct by the parties and has no authority to alter it, which would be beyond the authority vested in this Board. The way to change a history of practice is through negotiation. Here, the previous attempt by the Carrier to change or modify the past history and the pattern of conduct that had occurred failed. The Carrier proposed a change to the rule in question setting forth a right of offset and that proposal was not accepted. The conclusion drawn from that effort was that the Carrier recognized they did not have the right to a offset and they wished to provide a negotiated avenue**

> **for offsets. Since that change was not adopted, there continues to be no right of offset for this Carrier and Organization for this property."**

PLB 6826, Award 76 (Fagnani, 2013) is to similar effect:

> **"We believe that the serving of the above Section 6 Notice was recognition by the Organization that the existing rules did not give Carmen the exclusive right to work associated with Bi-Modal RoadRailer cars, including the work claimed herein. * * * See First Division Award 2893, Second Division Award 6324, Third Division Award 24189, Award 1 of Public Law Board 281, Award 13 of Public Law Board 268, Award 14 of Public Law Board 1680, Award 42 of Public Law Board 4851, and Award 67 of Public Law Board 631, in all of which, the Board held that the serving of a Section 6 Notice was persuasive evidence that the employees did not then possess the right or benefit sought via the Notice. Since it is not within the authority of this Board to, in effect, write a new rule which the Organization has failed to secure through negotiation, the claim is denied in its entirety."**

Addressing drawbar couplings by TRRA crews while making interchange deliveries, Neutral Member Mikrut in 1995, in the second of these Awards, held:

> **"Since this Board cannot find fault with the reasoning and/or conclusion(s) reached by Public Law Board No. 5157 in it Award No. 18, consequently, based upon the arbitral principle of <u>stare decisis</u>, it is prudent that we reach the same conclusion in the instant case. While we are not necessarily obligated to follow the award(s) of other Public Law Board(s) in such situations, nevertheless, decisions rendered on this very same property, involving these same parties, and involving the same factual circumstances, absent a manifest error, dictate in favor of adhering to an established precedent. By following such a precedent, such as that which exists in the instant case, we give the parties a consistent view of the interpretation and application of the applicable rules, Consequently—and hopefully—we remove the necessity of having the parties relitigate the same issue before a different tribunal."**

Addressing drawbar couplings by TRRA crews while making interchange deliveries, Neutral Member Klein, in 2009, in the fifth of these Awards, held:

> **"This Board finds that the Fischbach and Mikrut Awards to be more persuasive, and holds the activity of the claimants involved improper switching in a foreign yard. Both of these reasoned awards on this property between the same parties focus on the activity of the claimants involved, and recognize the doubling over to another track, coupling the air hoses to a set of cars already on the interchange track, and pushing the combined cars into the clear as impermissible switching in a foreign yard. The Carrier's argument, if contractually permitted, may grant it the flexibility it desires, but that can only be accomplished at the negotiating table—not through arbitration."**

Addressing drawbar couplings by TRRA crews while making interchange deliveries, Neutral Member Scheinman, in 2017, in the sixth of these Awards, held:

> **"Instead, under established Rail Road principles, decisions on point shall be overturned only if the subsequent Board determines the prior decision was palpably erroneous. That ensures a party cannot continue to "shop" for a Referee until they find the desired result."**

Addressing drawbar couplings by TRRA crews while making interchange deliveries, this Neutral Member, in 2022, in the seventh of these Awards, will conform to the pattern; these sound precedents will not be overturned. The citation of Implementing Agreement No. 2 comes not just years, but nearly a half a century late. The Carrier's actions—and inactions—at the highest designated officer level in the decades since it was signed on April 10, 1975 have not been at all consistent with what that Agreement is now said to have established. Those HDO-level actions since 1975, since Implementing Agreement No. 2, show that it was not, contemporaneously, regarded as something that thereafter barred citation of the 1949 MOA, or even as something particularly consequential. Rather, it was yet another reiteration and summation of what had already come elsewhere in that 1975 MOA. With so many other internal statements of how much things had changed with the adoption of the April 10, 1975 MOA, it is not surprising that this last one faded into obscurity. That, likely, was why it went unmentioned before six successive Boards considering the issue over a 27-year span. That was why it did not have a 'this changes everything' effect when it was

reached. That was why it did not have a 'this changes everything' effect, ever, in the decades since. And that is why it does not have the 'this changes everything' effect that the Carrier only now attributes to it, and insists it must have going forward. For any, any combination, or all of these reasons, the pattern of the prior Awards is being left intact. This issue, of drawbar couplings by TRRA crews while making interchange deliveries, should not come back to arbitration an eighth time—unless and until *after* a contract change *is* obtained, and obtained in negotiation. In arbitration, this issue has been—and is—a settled matter.

AWARD

Claim sustained.

ORDER

This Board, after consideration of the dispute identified above, hereby orders that an award favorable to the Claimant(s) be made. The Carrier is ordered to make the Award effective on or before 30 days following the postmark date the Award is transmitted to the parties.

NATIONAL RAILROAD ADJUSTMENT BOARD
By Order of First Division

Dated at Chicago, Illinois, this 26th day of August 2022.

CARRIER MEMBER'S DISSENT

To

FIRST DIVISION AWARD 31041 – DOCKET 50944

(Referee Wendell Bell)

The Board's decision is palpably erroneous. It not only ignores the language of the relevant agreement, but it makes factual statements wholly unsupported by the record in order to try to bolster its erroneous reading of the agreement.

To review, the Organization's claim is based on the May 27, 1949, Point Seniority Memorandum of Agreement, which the Organization contends prohibits drawbar couplings in foreign yards. At the time that the May 27, 1949 Point Seniority MOA was signed, the Carrier's property was divided into a number of seniority districts. However, on April 10, 1975, the parties entered into agreements consolidating the Carrier's property into a single seniority district. In exchange for agreeing to a single seniority district, employees represented by the Organization received considerable benefits. One of the agreements entered into in connection with the elimination of seniority districts was Implementing Agreement No. 2, which states that "*the Memorandum of Agreement (Point Seniority Agreement), signed May 27, 1949, is canceled in its entirety together with all other agreements, rules, or practices, however established, which have the effect of preserving district seniority and/or district seniority restrictions as now constituted*." As the Board correctly finds, the May 27, 1949, Point Seniority MOA upon which the Organization's claim is based is in fact the agreement that was canceled by Implementing Agreement No. 2.

Given the Board's finding that Implementing Agreement No. 2 canceled the agreement that forms the sole basis for the Organization's claim, this should be an easy case. The Organization cannot succeed on a claim that is premised on an agreement that was "canceled in its entirety."

Shockingly, the Board concludes otherwise. To do so, the Board simply ignores the unambiguous language of Implementing Agreement No. 2 canceling the May 27, 1949, Point Seniority MOA "in its entirety." Despite those clear words, the Board instead finds that Implementing Agreement No. 2 canceled only part of the May 27, 1949, Point Seniority MOA. That finding is palpably erroneous.

The full text of Implementing Agreement No. 2 is as follows:

> ***Coincident with the execution of Memorandum of Agreement signed this date, it was also agreed that the prior rights seniority of switchmen and switch tenders employed prior to May 1, 1957 will be terminated with the implementation, by***

> ***TRRA, of any of the provisions of the Memorandum of Agreement, at which time the Memorandum of Agreement (Point Seniority Agreement), signed May 27, 1949, is canceled in its entirety together with all other agreements, rules, or practices, however established, which have the effect of preserving district seniority and/or district seniority restrictions as now constituted.***

To support its misreading of the agreement, the Board questions why there is not a comma after the word "entirety," and states that this lack of punctuation means that Implementing Agreement No. 2 does not cancel the entire May 27, 1949, Point Seniority MOA, but only the parts that "have the effect of preserving district seniority and/or district seniority restrictions as now constituted." But that construction of Implementing Agreement No. 2 – that not all of the May 27, 1949, Point Seniority MOA was canceled – cannot possibly be correct. As quoted above, Implementing Agreement No. 2 states that the May 27, 1949, Point Seniority MOA "is canceled in its entirety . . . ." (emphasis added). The Board just ignores those words and makes the literally impossible finding that the May 27, 1949, Point Seniority MOA was not actually canceled in its entirety, and that instead only the parts of that agreement that "have the effect of preserving district seniority and/or district seniority restrictions" were canceled.

That simply cannot be right. The Board's reading completely excises the critical words "in its entirety" from Implementing Agreement No. 2. To be sure, there may be ambiguity about what agreements (or parts thereof) were canceled aside from the May 27, 1949, Point Seniority MOA. The phrase "*all other agreements, rules, or practices however established,*" while clearly meant to be broad, does not specify what other agreements were canceled. But there is no ambiguity about the fate of the May 27, 1949, Point Seniority MOA. It is gone; "canceled in its entirety."

Consider this: A significant rainfall is predicted for a county beginning at about 3:00 p.m., an hour before a large county fair is set to begin. Numerous indoor and outdoor activities are scheduled, including a baseball game to be played at 7:00 p.m. between two high schools in the county. At noon, the county issues the following statement: "Tonight's baseball game is canceled in its entirety together with all other activities that may prove impossible to conduct because of rain." (Note the lack of a comma in that sentence.) To the Board's reading, this announcement would be ambiguous as to whether the baseball game is canceled. Maybe, the Board would say, tonight's game isn't canceled because it still might not rain. But such a reading of the county's announcement is just patently wrong. Tonight's game is canceled even if it does not rain. Other activities may or may not be canceled. But there is no baseball game tonight.

Thus, in our case, the May 27, 1949, Point Seniority MOA, with a specific name and date, is canceled in its entirety. What "*other agreements, rules, or practices*" may be canceled may be somewhat unknown. But "c*anceled in its entirety*" means every portion of the specifically referenced May 27, 1949, Point Seniority MOA is now null and void. The lack of a comma does not make that unclear.

To support its patent misreading of Implementing Agreement No. 2, the Board embarks on a factual recitation of the history of the parties' dispute that is not supported by the on-property record in this case. The Board therefore violates Circular 1, National Railroad Adjustment Board, Organization and Certain Rules of Procedure dated October 10, 1934. Most importantly, the Board makes the following factual presumption: during the fifteen-year period beginning on April 10, 1975 (when Implementing Agreement No. 2 was signed), until May 4, 1990, drawbar couplings by TRRA crews while making interchange deliveries occurred "*again and again*" AND that this type of claim was "*routinely paid*." The Board goes on to question why Implementing Agreement No. 2 wasn't being used to bring these supposedly recurring drawbar claims "*to a quick, total and effective end, by no later than 1976?"* It asks, "*Why did they go on, still being paid*?"

But there is absolutely nothing in the record to support the Board's assertions. Nothing in the record shows a single payment for a crew performing a drawbar coupling in a foreign yard at any time during this 15-year period. The Board just assumes that such payments happened, contending that drawbar couplings must have occurred and that if employees were not paid, the Organization would have filed claims about it.

But the Board cannot just assume facts. Record evidence is needed. There is no evidence of any drawbar coupling claims being paid during this fifteen-year period. None. The Board's assertion that payments were made is a figment of its imagination. And the Board's invention of this fact is especially troublesome because there is a far more plausible explanation for the lack of claims about drawbar couplings than the one the Board invents: that both parties knew and understood the May 27, 1949, Point Seniority MOA was canceled in its entirety and therefore there was no prohibition on drawbar couplings in foreign yards. This explanation becomes even more obvious when one reads the awards issued in the 1990s (PLB 5157, Award 18 (Fischbach), PLB 5455, Awards 19 (Mikrut), 25 (Wallin), and 26(Wallin)).[1] None of these awards, some of which favored the

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[1] While relevant to provide background, none of these awards address the issue presented by this claim. In the cases from the 1990s, the Organization did not argue, as it does here, that all drawbar couplings in foreign yards constitute agreement violations. It only contended that the specific drawbar couplings at issue in those cases violated other agreements. In was not until 2007 that the Organization suddenly argued that the May 27, 1949, Point Seniority MOA prohibited all drawbar couplings in foreign yards.

Carrier and some of which favored the Organization, reference the May 27, 1949, Point Seniority MOA. Nor do any of the statements of claims refer to an impermissible drawbar coupling. Instead, recognizing that the May 27, 1949, Point Seniority MOA was canceled, the Organization's claims that led to the awards issued in the 1990s were all based on alleged violations of Article I(a)(5) of the April 10, 1975, Agreement. It was not until December 29, 2007, that the Organization first raised an argument under the May 27, 1949, Point Seniority MOA. By that time, the drafters of the April 10, 1975, agreements, including Implementing Agreement No. 2, were long gone. There were no Carrier officers on property in 2007 who were part of the 1975 negotiations.

The Board further argues that Implementing Agreement No. 2 must not actually cancel the May 27, 1949, Point Seniority MOA in its entirety because the Carrier did not cite it "*for nigh on to a half a century*." But what would be the Carrier's motivation for this? The Carrier very transparently stated in its submission that it was an oversight on its part to not include Implementing Agreement No. 2 in submission to PLB 7268, Award No. 1 (Klein), and PLB 7642, Award No. 1 (Scheinman). It only discovered Implementing Agreement No. 2 after the Scheinman award was issued. This explains that there was no "*hidden*" agenda or "*inaction.*" And shouldn't the Organization be asked the same question? If the Organization felt that drawbar couplings violated the May 27, 1949, Point Seniority MOA, why did it wait 32 years (1975-2007) to raise the argument? Why didn't the Organization use the May 27, 1949, Point Seniority MOA for support in the awards from the 1990s? There is a simple answer: the Organization officials who negotiated the 1975 agreements knew that the May 27, 1949, Point Seniority MOA was canceled. This explanation makes much more sense than the Board's unsupported theory that drawbar couplings were being paid between 1975 and 1990. Indeed, there's no other conclusion to be reached without mental gymnastics being performed.

The Board then speaks of past practice and reprimands the Carrier for its failure to stipulate that it was paying claims on the basis of the Klein and Scheinman awards without precedent. But as the Board concedes, past practice cannot alter clear agreement language. The Board calls that proposition "unarguable." "Canceled in its entirety" is as clear as it can be; no past practice can overcome that langauge. The Board's assertion that the Carrier's service of a Section 6 Notice to overturn the Klein and Scheinman awards undermines its position here similarly ignores unambiguous language. As quoted in the Board's award, the Carrier's Section 6 Notice specifically stated that the Carrier was proposing to amend the agreements to state what the Carrier believed was already the case – that drawbar couplings in foreign yards were not an agreement violation. The idea that the

Carrier forfeited its argument that the existing agreements permitted drawbar couplings when it specifically said that it was not doing so make no sense.

Finally, the Board asserts, "*this Neutral Member, in 2022, in the seventh of these Awards, will conform to the pattern…*" But this Board's award is the first to consider Implementing Agreement No. 2 and, for the reasons stated herein, it is palpably erroneous. Further, the Board does not have the ability nor jurisdiction to state, "*In arbitration, this issue has been-and is-a settled matter*." This Board has crafted a narrative around its misreading of the contract and its invention of unsupported facts.

The Board recognizes the 1975 Agreement provided trainmen lifetime protection and consolidated the entire property into a single seniority district in a quid pro quo arrangement. Intuitively, if the Carrier provided lifetime protection to the workforce in exchange for, among other things, consolidating to one seniority district, why would it continue to allow the restrictions contained in the May 27, 1949, Point Seniority MOA, which contemplated multiple seniority districts on the TRRA? Canceling that agreement was the purpose of Implementing Agreement No. 2. Even though neither the current Organization leadership nor the Carrier's HDO were around in 1975 when this agreement was signed, a cursory review of the language from the 1975 agreement permits only one conclusion: with the elimination of multiple seniority districts, the May 27, 1949, Point Seniority MOA was "canceled in its entirety."

The Board's decision requires payments of claims based on an agreement that was "canceled in its entirety." To reach that conclusion, the Board ignores the unambiguous language of Implementing Agreement No. 2 and invents facts that have no record support. That is the very definition of palpably erroneous. To comply with its agreement with the Organization, the Carrier will pay this claim and the others for which this case was a pilot. However, the Carrier does so under protest, and it reserves the right, in the future, to refuse to pay claims for drawbar couplings in foreign yards.

Brad Ragland	*Kristin Beckner*
Brad Ragland Carrier Member	Kristin Beckner Carrier Member